

		On reply, Plaintiff withdraws her improper request for sanctions. Thus, the Motion is DENIED. Defendants are ordered to serve notice of this ruling.
53	<i>Lamping vs. McCarthy</i>	The application by Defendant/Cross-Complainant Rick Edward McCarthy, Jr. (“Defendant” or “McCarthy”) for a preliminary injunction against Plaintiffs/Cross-Defendants Gladys Lamping (“Gladys”) and John Lamping (“John”) (collectively, “Plaintiffs”) is GRANTED. Defendant’s objections to Gladys’ declaration and Penafiel’s declaration are overruled. The Court exercises its discretion to consider Defendant’s reply evidence. (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) Plaintiffs may respond to Defendant’s reply evidence during oral argument. <u>Legal Standard</u> “The general purpose of such an injunction is the preservation of the status quo until a final determination of the merits of the action.” (<i>Continental Baking Co. v. Katz</i> (1968) 68 Cal.2d 512, 528.) “The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy.” Rather, the court is merely determining whether, pending a trial on the merits, the defendant should or should not be